

STATE OF NEW YORK

6599--B

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. DILAN, HYNDMAN, LEVENBERG, COLTON, DAVILA -- read once and referred to the Committee on Correction -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to establishing the office of chief medical examiner

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The correction law is amended by adding a new section 47-a
2 to read as follows:

3 § 47-a. Office of chief medical examiner. 1. There shall be in the
4 commission an independent office of the chief medical examiner, consist-
5 ing of the chief medical examiner, a deputy chief medical examiner, and
6 eight associate medical examiners, all of whom shall be appointed by the
7 governor and be doctors of medicine with a certification in forensic
8 pathology and have significant experience in death investigations.

9 2. The chairperson of the board with respect to the office of chief
10 medical examiner shall exercise the powers and duties set forth in this
11 chapter, but shall not interfere with the performance by the chief
12 medical examiner or their office of the powers and duties prescribed by
13 the provisions of this section or any other law.

14 3. The chief medical examiner or their designee shall have such powers
15 and duties as may be provided by law in respect to bodies of persons
16 dying in a correctional facility, which shall include but not be limited
17 to:

18 (a) conducting independent autopsies, forensic investigations, and
19 collecting data for all deaths in correctional facilities;

20 (b) requiring the attendance and take testimony under oath of such
21 persons as such chief medical examiner may deem necessary and to require

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD10501-04-5

1 the production of books, accounts, papers and other evidence relative to
2 any matter within the jurisdiction of the office;

3 (c) publishing public annual reports that include individual-level
4 data detailing incarcerated individual deaths by year, cause of death,
5 manner of death, age, race/ethnicity, and sex;

6 (d) publishing public preliminary death reports for all incarcerated
7 individuals detailing date, time, preliminary cause of death, and manner
8 within ninety days of the death of such incarcerated individual; and

9 (e) delivering copies of all reports required pursuant to this section
10 directly to the appropriate district attorney, attorney general, the
11 commissioner, and the legislature.

12 § 2. This act shall take effect on the one hundred eightieth day after
13 it shall have become a law.